



Notification Waiver Determination

Nojima Corporation – Hitachi Global Life Solutions and Arçelik Hitachi Home Appliances

Acquisition	NJM4 Corporation, a special purpose vehicle managed by Nojima Corporation (Nojima), proposes to acquire an 80.1% interest in Hitachi Global Life Solutions' (Hitachi GLS) home appliances business and Arçelik Hitachi Home Appliances B.V. (AHHA) (together, the Target) through a series of interconditional steps (including Hitachi GLS' acquisition of a 60% interest in AHHA), as described in the transaction documents provided as part of the application (the Acquisition). Nojima, NJM4 Corporation and Hitachi GLS applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 August 2026

Parties to the Acquisition	The acquirer, Nojima, is a Japanese consumer electronics and home appliances retailer headquartered in Shinagawa, Tokyo and listed on the Tokyo Stock Exchange. Nojima is primarily engaged in the retail of consumer electronics and home appliances through an extensive network of stores across Japan and in Southeast Asia (to a limited extent). Nojima does not have any retail or wholesale operations in Australia. The Target comprises the Hitachi-branded home appliances business, which manufactures and supplies Hitachi-branded home appliances globally, including Hitachi GLS and AHHA. Hitachi GLS manufactures and sells home and commercial appliances under the Hitachi brand, primarily in Japan. Hitachi GLS and Arçelik A.Ş. (Arçelik), a Turkish domestic appliances and consumer electronics manufacturer, set up AHHA, a joint venture to manufacture, sell and provide after-sales services of Hitachi-branded home appliances outside of Japan, including Australia. Pre-Acquisition, Arçelik holds a 60% stake in AHHA and Hitachi GLS holds the remaining 40%. AHHA currently distributes Hitachi-branded refrigerators, washing machines, dryers and vacuum cleaners in Australia. Hitachi GLS does not have any presence in Australia separate from AHHA.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Nojima and Hitachi GLS (including its connected entities) or between Nojima and AHHA in the manufacture and supply of refrigerators, washing machines, dryers or vacuum cleaners in Australia b. there are alternative manufacturers and suppliers of refrigerators, washing machines, dryers and vacuums in Australia c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct in Australia post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act